

Plaintiff's Alternative Request for Relief: In the alternative, Plaintiff requests that the Court deny or continue the motion under Code of Civil Procedure § 437c(h). CCP 437c(h) provides: "If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just." The declaration in support of the continuance request must describe the discovery that is necessary to resist the motion. *Franzee v. Seeley* (2002) 95 Ca.4th 627, 634-635. A party who seeks continuance under CCP 437c(h) must show why the discovery necessary to oppose the motion for summary judgment or summary adjudication could not have been completed sooner and accordingly requires the court to grant the continuance. *Braganza v. Albertson's LLC* (2021), 67 Cal. App. 5th 144. It is not sufficient merely to indicate that further discovery or investigation is contemplated. *Bahl v. Bank of America* (2001) 89 Ca.4th 389, 396-397.

Here, Plaintiffs' argument and affidavit state only that Plaintiff needs to conduct additional discovery to obtain additional evidence to support its case. Plaintiff does not explain what essential facts may exist, and does not state any reasons those facts cannot be presented. The Court also notes that Plaintiff previously brought its own Motion for Summary Adjudication on this very same issue regarding establishing Good News's duty of care, which was denied. The request to deny or continue the hearing on this motion pursuant to CCP 437c(h) is therefore denied.

The undisputed evidence establishes that Good News Rescue Mission did not own, possess, or control the property where the October 8, 2024 attacks occurred, nor did it own, possess, or control The Manor at the time of the attacks. Good News had no involvement in the "Future Story" program, no role in Witcher's admission or supervision, and no special relationship with the Plaintiffs. Plaintiff has failed to produce competent, admissible evidence raising a triable issue of material fact on the threshold question of duty. Plaintiff's failure to file a required Separate Statement provides an additional independent basis to grant the motion.

Defendant Good News Rescue Mission's Motion for Summary Judgment is **GRANTED** as to all causes of action in both the Sims action (Case No. 25CV-0208112) and the Ceremony action (Case No. 25CV-0208573). Defendant has lodged a proposed order which will be executed.

9:00 a.m. Review Hearings

BAUDIZZON VS. RODRIGUES

CASE NUMBER: 24CV-0205393

This matter is on calendar for status review. Plaintiff has filed a Status Statement which indicates the matter has settled as to Defendant Rodrigues. The case remains open to pursue Plaintiff's uninsured motorist claim. Plaintiff requests a continuance to November 2026 in order to pursue that claim. Today's review hearing is continued to **Monday, November 9, 2026, at 9:00 a.m. in Department 64** for status. No appearances are necessary on today's calendar.

JAMES VS. GERLINGER FOUNDRY AND MACHINE WORKS INC.

CASE NUMBER: 25CV-0206862

This matter is on calendar for review regarding status of settlement. At the April 6, 2026 review hearing, the parties informed the Court that this matter had settled. The Court directed the parties to file a notice of settlement as required by CRC 3.1385. No notice of settlement has been filed.